

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 16-01

CARGO AGENTS, INC., INTERNATIONAL TRANSPORT MANAGEMENT CORP.,
and RCL AGENCIES, INC., on behalf of themselves and all others similarly situated,

COMPLAINANTS,

v.

NIPPON YUSEN KABUSHIKI KAISHA, NYK LINE (NORTH AMERICA) INC., MITSUI
O.S.K. LINES, LTD., MITSUI O.S.K. BULK SHIPPING (USA) INC., WORLD LOGISTICS
SERVICE (U.S.A.) INC., KAWASAKI KISEN KAISHA, LTD., "K" LINE AMERICA, INC.,
EUKOR CAR CARRIERS INC., WALLENUS WILHELMSSEN LOGISTICS AS,
WALLENUS WILHELMSSEN LOGISTICS AMERICAS LLC, COMPAÑIA SUD
AMERICANA DE VAPORES S.A., CSAV AGENCY NORTH AMERICA, LLC, HÖEGH
AUTOLINERS HOLDINGS AS, HÖEGH AUTOLINERS AS, HÖEGH AUTOLINERS, INC.,
AUTOTRANS AS, ALLIANCE NAVIGATION LLC, and
NISSAN MOTOR CAR CARRIER CO., LTD.,

RESPONDENTS.

**COMPLAINANTS' MOTION FOR EXTENSION OF TIME TO ANSWER
RESPONDENTS' CONSOLIDATED MOTION TO STAY PROCEEDINGS**

Pursuant to 46 C.F.R. § 502.69, Complainants hereby seek an order extending the time to
answer Respondents' Consolidated Motion to Stay Proceedings ("Motion to Stay") up to and
including February 16, 2016.

On January 25, 2016, Respondents filed the Consolidated Motion to Stay Proceedings
Related to Complainants' FMC complaint pending resolution of an appeal to the U.S. Court of
Appeals for the Third Circuit of the U.S. District Court for the District of New Jersey's dismissal
of the class action complaint filed under the federal antitrust laws in *In re Vehicle Carrier
Services Antitrust Litigation*, Master Docket No. 13-cv-3306, MDL No. 2471. Prior to

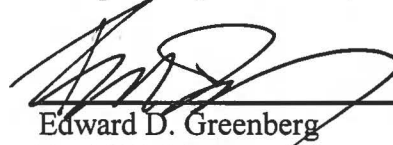
Respondents' filing of the Motion to Stay, the parties discussed and agreed upon a proposed procedural schedule for Complainants to respond to the Motion to Stay, for Respondents to file their answer or motion in response to the complaint and for Complainants to respond to any motion to dismiss the Complaint. (See footnote 4 of the Motion to Stay).

As agreed by the parties, Complainants request that they be allowed twenty-one (21) days to respond to the Motion to Stay. In view of the recent severe weather events and the significant issues involved in this proceeding, the normal seven (7) day period for responses to non-dispositive matters under 46 C.F.R. § 502.71 is inadequate for Complainants to fully respond to the Motion for Stay. Accordingly, in accordance with the agreement of the parties to this proceeding and as no one will be adversely affected by the extension, Complainants now move for an extension of an additional fourteen (14) days to file a response to the Motion to Stay, until on or before February 16, 2016. The FMC has previously granted motions for extension of time in cases where an opposing party raised no objections to the proposed extension. *See, e.g., James J. Flanagan Shipping Corporation d/b/a James J. Flanagan Stevedores v. Lake Charles Harbor and Terminal District and Lake Charles Stevedores, Inc.*, 1998 WL 942102 (FMC 1998).

For the foregoing reasons, Complainants respectfully request an extension of time to respond to Respondents' Motion to Stay until February 16, 2016.

Dated: January 29, 2016

Respectfully submitted,



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CERTIFICATE OF SERVICE

I do hereby certify that I have delivered a true and correct copy of the foregoing document to the following addressees at the addresses stated by first class-mail, postage prepaid and/or via email transmission, this 29th day of January, 2016:

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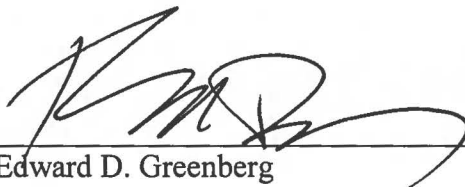
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